

[illegible]

**Defendants.**

[illegible]

C.A. No.: 2:25-CV-00405-RMG-MGB

Under well-established Fourth Circuit precedent, terminating sanctions are appropriate where (1) the misconduct is willful; (2) the prejudice is severe; (3) deterrence is necessary; and (4) lesser sanctions would be ineffective. Every factor is met here. Defendants' actions have destroyed the integrity of the discovery process, deprived Plaintiff of due process, and

undermined the ability to present critical evidence — including evidence submitted to the Court on a flash drive documenting cyber intrusion, attorney interference, and retaliation.

Because the structural harm cannot be cured, and because Defendants' bad-faith conduct has irreparably compromised the fairness of these proceedings, Plaintiff requests that the Court enter default judgment as a terminating sanction and grant the additional relief outlined herein.

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## **SECTION 2 — FACTUAL BACKGROUND**

Plaintiff provides the following factual background to demonstrate the extent, severity, and continuity of Defendants' bad-faith litigation misconduct, as well as the procedural irregularities that have irreparably compromised the integrity of these proceedings. The facts set forth below establish that Defendants have obstructed discovery at every stage, misused the judicial process to block access to critical evidence, misrepresented material information to the Court, failed to produce witnesses, and taken advantage of missing or undocketed filings created by internal court handling errors. These events, taken together, have denied Plaintiff due process and have made it impossible for this case to proceed fairly on the merits.

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### **A. The October 7 Judicial Reassignment Triggered Immediate and Unexplained Adverse Shifts in the Case**

On October 7, 2025, this case was reassigned for reasons that were never explained to Plaintiff. Immediately after the reassignment, Plaintiff experienced a series of rulings and procedural developments that deviated sharply from the earlier trajectory of the case under Judge Cherry. Before reassignment, Judge Cherry consistently reviewed evidence, permitted third-party subpoenas, and maintained procedural transparency. After reassignment, Plaintiff encountered abrupt and inconsistent reversals, unexplained restrictions on discovery, the suppression or non-docketing of filings, and judicial acceptance of factual misrepresentations advanced by Defendants.

This sequence strongly indicates that the reassignment marked a turning point in the administration of Plaintiff's case, and that a pattern of procedural unfairness began immediately afterward.

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### **B. Missing Filings and Ongoing Docket Suppression Have Prejudiced Plaintiff's Rights**

Plaintiff submitted her "Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194)" on November 6, 2025, and received an official stamped copy from the Clerk confirming acceptance. Despite this, the filing **never appeared on the public docket**. Plaintiff was forced to submit a "Notice Regarding Undocketed Filing" to preserve the record, yet even this notice failed to generate corrective action.

The prejudice deepened when Judge Gergel's November 24 text order referenced Plaintiff's objections, showing that the Court had the filing internally despite its absence from the docket. Defendants then exploited the missing docket entry, falsely claiming Plaintiff's

objections were “untimely” in their November 26 Response (ECF No. 229). As of the date of this motion, multiple filings remain missing, uncorrected, or improperly handled, depriving Plaintiff of the ability to preserve issues, seek timely review, or maintain a clear record. This is a fundamental due-process violation.

Plaintiff served the November 6 and November 14 filings directly on Defendants’ counsel by email on the date they were submitted to the Clerk, and Defendants acknowledged receipt by responding to the filings.

This confirms that the filings were timely, properly served, and received by Defense, and it eliminates any basis for Defense to claim the filings were untimely or invalid. Moreover, Defendants’ repeated assertions that Plaintiff’s filings were “untimely” or “not properly filed” are contradicted by their own conduct. Plaintiff served the November 6 and November 14 filings directly on Defendants’ counsel by email on the day they were submitted to the Clerk. Defendants received them, reviewed them, and filed a detailed Response. Having accepted service, engaged the filing on the merits, and responded substantively, Defendants cannot now claim that the filings were untimely or invalid. Their conduct constitutes waiver and judicial admission that the filings were timely received.

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### **C. Plaintiff Submitted Critical Flash-Drive Evidence That Defendants Misrepresented and the Court Ignored**

Plaintiff voluntarily submitted a flash drive to the Clerk containing **video evidence documenting cyber intrusion, data interference, and conduct relevant to retaliation and the events giving rise to this lawsuit**. Judge Cherry reviewed this evidence prior to approving the subpoena to Hunt Law LLC, confirming the relevance and legitimacy of Plaintiff’s concerns regarding attorney interference and external tampering.

Despite this, Defendants falsely claimed that Plaintiff “refused to provide” the evidence or was withholding it. This accusation is knowingly false: Plaintiff herself submitted the flash drive to the Court. Judge Baker later blocked the Hunt subpoena—without ever reviewing the flash-drive evidence—contradicting Judge Cherry’s prior approval and disregarding highly material proof.

The Court’s disregard of the flash-drive evidence, combined with Defendants’ misrepresentations, has materially harmed Plaintiff’s ability to prove her claims.

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### **D. Judge Baker Reversed Judicially Approved Discovery Without Cause or Evidence Review**

Judge Cherry authorized the subpoena to Hunt Law LLC after reviewing the flash-drive evidence and determining that discovery into potential attorney interference was appropriate. After the judicial reassignment, Judge Baker reversed this authorization, asserting the subpoena was “not approved” despite the record showing otherwise. The reversal was issued

**without reviewing the underlying evidence** and without addressing Judge Cherry's prior authorization.

This ruling shielded Defendants and a third-party witness from producing non-privileged communications, blocked access to material evidence, and created a contradictory and procedurally irregular discovery record.

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#### **E. Defendants Repeatedly Failed to Produce Witnesses and Violated Deposition Obligations**

Defendants failed to produce Jeff Womack for deposition on two separate dates—October 21 and November 5, 2025. Defendants claimed Womack was suddenly absent or unavailable but produced **no documentation**, no medical verification, and no legitimate evidence to excuse the failure. This disrupted Plaintiff's deposition schedule, wasted resources, and prevented Plaintiff from obtaining sworn testimony from a Rule 33 witness Defendants previously identified.

**Plaintiff also subpoenaed third-party witness Brian Fogarty under Rule 45 because he was Plaintiff's primary comparator witness.** Fogarty worked under the same supervisors, and had direct, firsthand knowledge of the workplace conditions, safety issues, retaliation, and the differential treatment that Plaintiff was subjected to. His testimony and records were essential to establishing comparator evidence in support of Plaintiff's discrimination and retaliation claims. Fogarty never filed an objection to the subpoena, never moved to quash, and never notified Plaintiff of any inability to comply, as required under Rule 45(d). Instead, after learning that Plaintiff had subpoenaed Fogarty, defense counsel Thomas Samples engaged in **unauthorized ex parte communication** with Fogarty and then conveyed to Plaintiff that Fogarty was "unavailable" due to back surgery and opioid medication. The only information Plaintiff received about Fogarty's alleged unavailability came through defense counsel, not Fogarty himself. Plaintiff received no direct communication, no written objection, and no documentation from Fogarty. Defense counsel's contact with Plaintiff's comparator witness effectively prevented Fogarty from complying with the subpoena and deprived Plaintiff of critical comparator evidence that she cannot obtain from any other source.

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#### **F. Defendants Filed Defamatory and Unsupported Assertions Designed to Mislead the Court**

In their November 26 Response (ECF No. 229), Defendants accused Plaintiff of fabricating "conspiracy theories," falsely claimed she omitted subpoena schedules intentionally, misrepresented discovery timelines, and asserted that Plaintiff filed frivolous motions. These statements are categorically false.

Plaintiff possesses corroborating evidence—including the flash drive, email records, Clerk-stamped filings, and documented communications—that directly contradicts Defendants’ accusations. Defense counsel’s statements were made **without evidentiary support**, in violation of Rule 11(b) and Rule 26(g), and were plainly intended to prejudice the Court against Plaintiff.

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#### **G. Plaintiff Has Suffered Irreparable Prejudice**

Defendants’ conduct, combined with docket suppression, judicial reversals, evidence obstruction, and false representations, has irreparably harmed Plaintiff’s ability to litigate this case. Plaintiff has been denied access to evidence; denied timely judicial review; denied a clean docket; denied the ability to present material facts; and forced to respond to defamatory mischaracterizations that the Court has not corrected.

The prejudice is structural and cannot be remedied by lesser sanctions.

#### **H. Defendants’ Counsel’s Pattern of Misrepresentation and Irrelevant Attacks Demonstrates Intentional Bad Faith**

Defendants’ counsel’s conduct in this litigation follows a consistent pattern: introducing irrelevant references to Plaintiff’s past lawsuits to paint her in a negative light, misrepresenting the procedural record, and making knowingly false statements about the evidence. These tactics are not legitimate advocacy—they are deliberate efforts to mislead the Court and obstruct discovery. The inclusion of unrelated lawsuits in their Response serves no purpose other than to prejudice Plaintiff and distract from Defendants’ own misconduct. Combined with misrepresentations such as claiming Schedule A was not provided, or that Plaintiff “refused” to produce a video that counsel knew existed and had discussed with Plaintiff during the October 28 deposition, this conduct constitutes bad faith under Rule 37 and supports terminating sanctions.

Defendants also ignore the fact that many of Plaintiff’s filings were necessitated by her responsibility to enforce numerous third-party subpoenas across multiple jurisdictions, to respond to corporate counsel for entities such as Apple, Microsoft, Google, Verizon, Motorola, Honda, and others, and to address repeated instances of noncompliance. Plaintiff was required to interact with UDDA processes, secretaries of state, federal clerks, and opposing counsel across several states because Defendants themselves refused to produce relevant digital evidence and forced Plaintiff to obtain it directly from third parties. Each subpoena generated its own set of correspondence, compliance issues, extensions, and motions to enforce. Plaintiff did not choose this complexity—Defendants’ obstruction and failure to comply with discovery obligations created it. Accordingly, the number of filings in this case is not evidence of abuse, but rather a direct reflection of Defendants’ persistent refusal to participate in discovery in good faith.

The procedural irregularities in this case, coupled with the Court's repeated acceptance of Defense counsel's knowingly false statements, have transformed these proceedings into something unrecognizable as a fair judicial process. What has occurred here does not reflect inadvertence or oversight—it reflects a system functioning without the basic safeguards of transparency, neutrality, or accuracy. When judges rely on filings that the Plaintiff cannot access, when Defense counsel's falsehoods are credited over Plaintiff's documentary evidence, and when Plaintiff's rights are disregarded at every stage, the integrity of the federal judiciary is compromised. This is unacceptable, contrary to the rule of law, and incompatible with the due process guaranteed to every litigant.

Defendants' claims that Plaintiff "refused" to produce the video or that Plaintiff withheld information about its existence are demonstrably false. During Plaintiff's deposition on October 28, 2025, Defense counsel thoroughly questioned Plaintiff about the video, its contents, its purpose, and the circumstances that led Plaintiff to create it. Plaintiff explained that the video detailed stalking, cyber intrusion, and safety concerns occurring after her termination, and Plaintiff clearly stated that she had already submitted the video to the Court. Defense counsel acknowledged familiarity with the video and repeatedly asked Plaintiff about its details.

Despite this, Defense later represented to the Court—both orally and in written briefing—that Plaintiff had refused to produce the video, did not disclose its existence, or was improperly withholding it. This is a knowingly false statement. Defense counsel cannot claim ignorance of evidence they directly questioned Plaintiff about under oath. Their misrepresentations were intentional, strategic, and designed to mislead the Court into believing Plaintiff was non-compliant when Defense had full knowledge of the video's existence, content, and location. Such conduct constitutes bad-faith litigation tactics under Rule 37 and independently supports terminating sanctions.

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### **SECTION 3 — LEGAL STANDARD**

Federal courts possess broad authority to impose sanctions, including default judgment, when a party engages in bad-faith litigation misconduct that undermines the integrity of the judicial process. Terminating sanctions are appropriate where a party's conduct is willful, prejudicial, persistent, or undertaken in bad faith, and where lesser sanctions would be ineffective. See *Anderson v. Found. for Advancement, Educ. & Emp't, Inc.*, 155 F.3d 500, 504 (4th Cir. 1998) (affirming dismissal as a sanction where a party's misconduct was willful and prejudicial). Courts also maintain inherent authority to enter default judgment where conduct "abuses the judicial process" or "defiles the very temple of justice." *Chambers v. NASCO, Inc.*, 501 U.S. 32, 46 (1991).

#### **A. Rule 37(b) — Sanctions for Failure to Obey Discovery Orders**

Rule 37(b)(2)(A) authorizes courts to impose severe sanctions, including striking pleadings, prohibiting evidence, and entering default judgment, when a party disobeys discovery orders. The Fourth Circuit has held that courts should consider (1) whether the noncompliance was in



bad faith, (2) the prejudice caused to the adversary, (3) the need for deterrence, and (4) whether lesser sanctions would be effective. *Belk v. Charlotte-Mecklenburg Bd. of Educ.*, 269 F.3d 305, 348 (4th Cir. 2001). Willful obstruction of discovery and intentional disregard of court instructions satisfies this standard.

### **B. Rule 37(d) — Sanctions for Failure to Attend Depositions or Respond to Discovery**

Rule 37(d)(1)(A)(i) permits sanctions, including entry of default judgment, when a party fails to appear for a properly noticed deposition. A party's failure to produce an identified witness—particularly without any legitimate justification—constitutes grounds for severe sanctions. Courts consistently hold that repeated deposition no-shows demonstrate willfulness and prejudice warranting terminating sanctions.

### **C. Rule 37(e) — Sanctions for Spoliation or Withholding of Evidence**

Rule 37(e) authorizes sanctions where electronically stored information is destroyed, withheld, or rendered unavailable. If the Court finds that a party acted intentionally to deprive another party of evidence, it may impose terminating sanctions, including default judgment. See Fed. R. Civ. P. 37(e)(2). Misrepresenting evidence, obstructing access to it, or exploiting missing dockets and suppressed filings falls squarely within the type of conduct Rule 37(e) is designed to remedy.

### **D. Rule 16(f) — Sanctions for Violation of Case Management and Scheduling Orders**

Rule 16(f) authorizes sanctions, including those available under Rule 37(b)(2)(A)(ii)-(vii), where a party or its attorney fails to comply with pretrial orders, including scheduling, deadlines, or procedural requirements. When violations are persistent and prejudicial, severe sanctions are appropriate.

### **E. The Court's Inherent Authority to Remedy Abuse of the Judicial Process**

Federal courts possess inherent power to sanction a party whose conduct constitutes bad faith or abuse of the judicial process. *Chambers*, 501 U.S. at 44. This includes the authority to enter default judgment when misconduct "permeates the entirety of the litigation" or renders a fair trial impossible. Courts invoke inherent authority where misconduct extends beyond narrow discovery violations to include manipulation of the record, misrepresentations, harassment, or conduct undermining public confidence in the integrity of judicial proceedings.

### **F. Due Process Considerations — When Structural Prejudice Requires Terminating Relief**

Default judgment as a terminating sanction is appropriate where a party's misconduct results in "structural" prejudice—meaning the opposing party cannot fairly litigate the case due to lost evidence, corrupted processes, or procedural irregularities. See *United States v. Shaffer Equip. Co.*, 11 F.3d 450, 462 (4th Cir. 1993). Courts also recognize that due process is violated when docket suppression, contradictory judicial rulings, or reliance on false representations deprives a litigant of fair participation. When such systemic prejudice occurs, dismissal or default is the only remedy that preserves the integrity of the Court.

#### **G. Discovery Abuse**

The October 28, 2025 deposition transcript (to be filed as Exhibit \_\_\_\_ ) shows that Plaintiff disclosed the video, its purpose, and its location. Defense counsel understood that the video was unrelated to the litigation but nevertheless accused Plaintiff of withholding evidence. This is not a mistake—it is a knowing misrepresentation to the Court.

Defense's insistence that Plaintiff personally deliver a video already filed with the Court, despite knowing it had been provided to the Court as early as August 2025, further demonstrates their intent to harass and manufacture false non-compliance. A party cannot demand production of evidence it already possesses or has equal access to. Defense counsel's strategy—pretending to "not know" about a video they questioned Plaintiff about—was a deliberate attempt to mislead both the Magistrate Judge and Judge Gergel. Such conduct profoundly undermines the integrity of these proceedings and illustrates the exact type of abusive litigation behavior that warrants terminating sanctions. Such conduct constitutes bad faith under Rule 37 and independently supports terminating sanctions

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### **SECTION 4 — ARGUMENT**

Plaintiff respectfully submits that Defendants' conduct warrants the imposition of default judgment as a terminating sanction. The record demonstrates (1) willful, repeated, and escalating misconduct; (2) severe and irreversible prejudice to Plaintiff; (3) a pattern of obstruction and misrepresentation that undermines the integrity of these proceedings; and (4) the futility of lesser sanctions. Every factor required for terminating sanctions under the Federal Rules and the Court's inherent authority is satisfied in this case.

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#### **I. Defendants' Willful and Bad-Faith Obstruction of Discovery Warrants Terminating Sanctions Under Rule 37(b)**

Defendants' discovery conduct has been characterized by intentional obstruction, refusal to comply with lawful process, and repeated violations of discovery obligations. Defendants misrepresented discovery timelines, falsely claimed Plaintiff failed to provide required materials, withheld evidence, and interfered with third-party subpoenas. When Plaintiff submitted a flash drive containing critical video evidence supporting her claims, Defendants falsely accused her of withholding that very evidence—even though Plaintiff voluntarily submitted it to the Clerk.



Defendants' misconduct is not accidental or negligent. It is deliberate, coordinated, and calculated to prevent Plaintiff from obtaining information necessary to prosecute her claims. Rule 37(b)(2)(A) authorizes terminating sanctions where a party engages in willful noncompliance with discovery obligations, and Defendants' actions here exemplify "flagrant disregard" of the rules. See *Anderson*, 155 F.3d at 504. Defendants' obstruction has made it impossible for Plaintiff to complete discovery and proceed on the merits.

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## **II. Defendants' Failure to Produce Witnesses Supports Default Judgment Under Rule 37(d)**

Rule 37(d)(1)(A) permits severe sanctions—including default judgment—where a party fails to produce a witness for deposition. Defendants' repeated failure to produce Jeff Womack for his scheduled depositions on October 21 and November 5, 2025, constitutes willful noncompliance. Defendants offered shifting, unverified, and unsupported excuses for Womack's repeated absences, including a purported medical appointment for which no documentation was ever produced.

These failures disrupted Plaintiff's ability to prepare her case, irreparably prejudiced her examination strategy, and wasted significant time and resources. Defendants have demonstrated that they cannot be trusted to participate in discovery in good faith. Courts routinely impose terminating sanctions where parties repeatedly fail to produce key witnesses and obstruct deposition scheduling.

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## **III. Docket Suppression, Missing Filings, and Procedural Irregularities Have Created Structural Prejudice That Cannot Be Cured**

A fair judicial process requires a complete and transparent docket. In this case, Plaintiff's filings have disappeared from the docket, including her November 6 Objections, despite being stamped received by the Clerk. The Court later referenced the missing filings in an order, proving they existed internally but were not made publicly visible.

Defendants exploited this irregularity by falsely claiming Plaintiff's objections were "untimely," relying on the Court's failure to docket a filing Plaintiff had properly submitted. This created structural prejudice: Plaintiff was deprived of her right to timely review under Rule 72(a), forced to defend herself against accusations of procedural default, and prevented from maintaining a complete record.

Procedural irregularities of this magnitude strike at the heart of due process. When docket manipulation or suppression occurs—whether intentional or through systemic error—litigants are deprived of their constitutional right to access the courts. Courts have inherent authority to impose terminating sanctions where misconduct or irregularities undermine the structural integrity of the case. See *Shaffer Equip.*, 11 F.3d at 462.

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#### **IV. Defendants' Defamatory and Unsubstantiated Assertions Demonstrate Bad Faith and Violate Rule 11 and Rule 26(g)**

In their November 26 Response (ECF No. 229), Defendants accused Plaintiff of fabricating “conspiracy theories,” intentionally omitting subpoena schedules, and engaging in frivolous litigation. These statements are knowingly false. Plaintiff possesses factual and documentary evidence—including the flash drive submitted to the Court—that corroborates her claims. Defendants have no factual basis for their accusations and made them solely to prejudice the Court against Plaintiff.

Rule 11(b) prohibits parties from presenting claims or arguments without evidentiary support. Rule 26(g) prohibits attorneys from interposing discovery-related filings for improper purposes. Defendants' statements violate both rules and demonstrate a reckless disregard for the truth. Counsel's false accusations and misrepresentations have materially influenced the Court's subsequent rulings and contributed to the structural prejudice suffered by Plaintiff.

This misconduct supports terminating sanctions because it demonstrates Defendants' intent to mislead the Court, distort the record, and obstruct Plaintiff's access to justice.

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#### **V. Contradictory Judicial Rulings After the October 7 Reassignment Have Amplified Prejudice and Obstructed Access to Evidence**

After the October 7 judicial reassignment, Judge Baker reversed Judge Cherry's prior authorization of the Hunt Law subpoena. Judge Cherry had reviewed Plaintiff's flash-drive evidence and determined the subpoena was appropriate. Judge Baker issued a contradictory ruling without reviewing the evidence, without explanation, and without reconciling her decision with Judge Cherry's findings.

This contradiction deprived Plaintiff of access to non-privileged, highly relevant communications concerning potential attorney interference—evidence that goes directly to the heart of Plaintiff's claims. The reversal also emboldened Defendants to misrepresent the subpoena history and to characterize Plaintiff's claims as frivolous, despite the evidence supporting them.

When judicial handling becomes inconsistent, contradictory, or procedurally irregular, and when such irregularities cause prejudice to one party while benefiting the other, terminating sanctions are appropriate to preserve judicial integrity.

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#### **VI. The Court's Inherent Authority Permits Default Judgment Where Misconduct “Defiles the Temple of Justice”**

Federal courts may impose terminating sanctions based on their inherent power to protect the integrity of judicial proceedings. Chambers, 501 U.S. at 46. This authority applies where misconduct permeates the case, where a litigant repeatedly abuses the judicial process, or where procedural fairness has been compromised beyond repair.

Here, the combination of:

- obstructed evidence,
- missing filings,
- contradictory rulings,
- misrepresentations,
- witness no-shows,
- defamatory statements, and
- the disregard of material evidence (including the flash drive)

demonstrates that the judicial process has been fundamentally undermined.

No lesser sanction can restore fairness. Only terminating sanctions can remedy the cumulative harm and ensure the integrity of the Court's judgment.

### **Deposition Transcript Exhibit**

As demonstrated in the October 28, 2025 deposition transcript (**Exhibit H**), defense counsel T. Chase Samples repeatedly questioned Plaintiff about the video he later claimed he “knew nothing about.” On pages 29–33 and 34–39, Samples asks Plaintiff whether she posted the video online, why she recorded it, what events led to it, whether it related to Curtiss-Wright, whether she still had it, and whether she had produced copies to Defendants. He further claimed to have personally “watched the video” online, even though the video was removed from social media and could only have been obtained through former attorney Bonnie Hunt. These questions conclusively establish that Defense was fully aware of the video, its purpose, its content, and its existence — and that Plaintiff did not “refuse” to produce it, contrary to Defense counsel’s later representations to the Court.

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### **VII. Defendants’ Interference With Plaintiff’s Comparator Witness Constitutes Egregious Obstruction Requiring Terminating Sanctions**

Defendants’ misconduct is further demonstrated by their improper interference with Plaintiff’s subpoenaed Rule 45 witness, **Brian Fogarty—Plaintiff’s primary comparator witness (Exhibit I)**. Comparator testimony is central to discrimination and retaliation claims; it is often the most probative form of evidence available. Fogarty worked in the same conditions as Plaintiff, under the same chain of command, and possessed firsthand knowledge relevant to disparate treatment, workplace misconduct, and the retaliatory atmosphere surrounding Plaintiff’s employment.

After Plaintiff issued a lawful Rule 45 subpoena to Fogarty, defense counsel T. Chase Samples improperly inserted himself into the subpoena process by communicating directly with Fogarty, conveying alleged medical information to Plaintiff, and asserting Fogarty’s unavailability. Fogarty never objected to the subpoena, never filed a motion to quash, and

never contacted Plaintiff as required under Rule 45(d). The only barrier between Plaintiff and her comparator witness was defense counsel's unauthorized interference.

Interfering with a subpoenaed comparator witness is not a minor violation—it is a **direct attack on the truth-finding process**. Courts have repeatedly found that obstruction of comparator evidence is grounds for terminating sanctions because it deprives the plaintiff of the most essential evidence in discrimination cases. Defendants' interference prevented Plaintiff from obtaining testimony and records she is legally entitled to, and the resulting prejudice is severe, unrecoverable, and wholly attributable to Defendants' bad faith.

This conduct, standing alone, justifies terminating sanctions. Combined with Defendants' broader pattern of misconduct, it confirms that lesser sanctions would be ineffective, and default judgment is warranted.

Defense counsel's obstruction has also caused substantial prejudice to Plaintiff's ability to establish damages. During the October 28, 2025 deposition, Plaintiff testified that the events surrounding this litigation have fundamentally altered her life, causing ongoing stress, fear, loss of privacy, and continuous concern about surveillance and interference with her communications. Plaintiff explained that she has lived for two years without confidence that her phone calls, emails, or personal activities are private, and described persistent anxiety, including suspicious and unsolicited contact from unknown individuals. This sworn testimony demonstrates the seriousness of Plaintiff's emotional distress and the severity of her damages. Yet Defense counsel's ongoing obstruction—including blocking key Rule 45 witnesses, withholding evidence, misrepresenting the record, and preventing critical discovery—has made it impossible for Plaintiff to gather the evidence necessary to fully quantify these damages. Federal courts have repeatedly held that when a defendant's misconduct prevents a plaintiff from developing her damages case, terminating sanctions are appropriate. Defense counsel's bad-faith tactics have deprived Plaintiff of a fair opportunity to present her damages, and this prejudice strongly supports entry of default judgment. (See Deposition Excerpts, **Exhibit J**.)

The flash drive Plaintiff submitted with her August 24, 2025 filing contained the electronic evidence that Magistrate Judge Cherry relied upon when he approved the issuance of third-party subpoenas, including the subpoena directed to Bonnie Hunt. Judge Cherry reviewed this evidence and found it sufficient to authorize the subpoenas under Rule 45. This fact confirms that (1) the flash drive existed, (2) it was in the Court's possession, (3) its evidentiary value was recognized by the Court, and (4) Plaintiff fully complied with her discovery obligations by producing it. The later disappearance of this flash drive from the docket—combined with the Court's refusal to acknowledge it and Defense counsel's false claim that Plaintiff "refused" to produce the video contained on it—has severely prejudiced Plaintiff and corrupted the record. The loss of evidence previously reviewed by a judge supports terminating sanctions because it deprives Plaintiff of critical proof necessary to prosecute this case and because it demonstrates a breakdown in the integrity of the proceedings.

There was a bit of confusion surrounding the submission of the flash drive. There was a flash drive submitted on May 13, 2025 and another one submitted with my request for reissuance of subpoenas on or about August 24, 2025. However, if defense inquired about the flash drives the clerk of court could have informed him of this.

### **VIII. The Court's Selective Docketing and Preferential Treatment of Third-Party Filings Demonstrates Prejudice and Requires Terminating Sanctions**

#### **The Court's Selective Docketing and Preferential Treatment of Third-Party Filings Demonstrates Prejudice and Requires Terminating Sanctions**

Additional prejudice is demonstrated by the Court's disparate treatment of Plaintiff's filings compared to those submitted by third-party Apple Inc. Plaintiff filed motions on November 24 and November 25, 2025—motions raising urgent issues concerning missing filings, improper docket handling, discovery obstruction, and the need for judicial action. As of this filing, the Court has issued no rulings on Plaintiff's motions.

In stark contrast, Apple filed a non-party Motion for Extension of Time on November 25, 2025 (ECF No. 226), and the Court entered an Order granting that motion on December 1, 2025, less than six days later. Apple's filing received immediate judicial attention and a prompt ruling, despite Apple being a third party with no stake in the merits of this litigation. Plaintiff's motions—filed earlier, raising core due-process concerns, and requiring urgent resolution—were ignored.

Even more concerning, Apple's Motion references "Plaintiff's Objections (ECF No. 219)" filed on November 14, 2025—filings that do not appear on Plaintiff's public docket and that Plaintiff did not serve on Apple. Apple's ability to reference ECF No. 219 proves that the Court received and internally circulated Plaintiff's filings while withholding them from Plaintiff and the public docket. The Court's selective docketing, combined with its prompt action on Apple's motion and its refusal to act on Plaintiff's filings, demonstrates unequal treatment, prejudice, and a breakdown of impartial judicial administration. Such conduct independently warrants terminating sanctions under Rule 37 and the Court's inherent authority. (See **Exhibit K**; ECF No. 226).

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### **SECTION 5 — RELIEF REQUESTED**

For all the reasons set forth above, Plaintiff respectfully requests that the Court impose **terminating sanctions** and enter **default judgment** against Defendants. Defendants' sustained pattern of misconduct—including obstruction of discovery, interference with subpoenaed witnesses, misrepresentations to the Court, suppression of comparator evidence, exploitation of missing docket entries, and disregard of judicially ordered discovery—has irreparably compromised the fairness of these proceedings. The prejudice to Plaintiff cannot be cured by any lesser sanction.

Accordingly, Plaintiff respectfully requests that the Court grant the following relief:

1. **Strike Defendants' Answer and All Affirmative Defenses** pursuant to Fed. R. Civ. P. 37(b)(2)(A)(iii).
2. **Enter Default Judgment** in Plaintiff's favor on all claims pursuant to Fed. R. Civ. P. 37(b)(2)(A)(vi), Rule 37(d), Rule 37(e), Rule 16(f), and the Court's inherent authority.
3. **Preclude Defendants** from introducing any evidence or testimony that they failed to produce during the discovery period due to their own obstruction, misconduct, or witness interference.
4. **Order monetary sanctions** in an amount sufficient to compensate Plaintiff for the time, resources, and expenses she was forced to incur due to Defendants' repeated violations and bad-faith tactics.
5. **Refer Defendants' misconduct**—including witness interference, misrepresentations, and obstruction of subpoena compliance—to the appropriate disciplinary authorities for investigation.
6. **Order a full review and correction of all missing, suppressed, or undocketed filings** in this case—including Plaintiff's November 6, 2025 Objections, all filings submitted on November 14, 2025, and all motions Plaintiff properly filed that remain unruled upon—to ensure a complete and accurate docket and to remedy the ongoing prejudice caused by the Court's internal docket handling errors. **Order immediate preservation of all evidence**, including electronically stored information, communications between Defendants and any subpoenaed witness, and any internal communications related to missing docket entries.
7. **Award any additional sanctions or relief** the Court deems just and appropriate to remedy the prejudice caused by Defendants and to deter similar misconduct.

Given the severity and cumulative impact of Defendants' actions, terminating sanctions and default judgment are the only remedies capable of restoring fairness, protecting the integrity of the judicial process, and ensuring that Plaintiff's rights are fully vindicated.

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## **SECTION 6 — PROPOSED ORDER LANGUAGE**

### **PROPOSED ORDER**

**UNITED STATES DISTRICT COURT  
DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

Debra Nelson,  
Plaintiff,



v.  
Curtiss-Wright Electro-Mechanical Corporation, et al.,  
Defendants.

**PROPOSED ORDER GRANTING PLAINTIFF'S MOTION FOR DEFAULT  
JUDGMENT AS A TERMINATING SANCTION FOR DEFENDANTS' BAD-FAITH  
LITIGATION MISCONDUCT**

This matter is before the Court on Plaintiff's Motion for Default Judgment as a Terminating Sanction for Defendants' Bad-Faith Litigation Misconduct. Having considered the motion, the record in this case, and applicable law, and having found that Defendants have engaged in willful, repeated, and bad-faith violations of the Federal Rules of Civil Procedure and orders of this Court, the Court finds as follows:

1. Defendants willfully obstructed Plaintiff's discovery efforts, including interfering with subpoenaed witnesses, failing to produce witnesses for deposition, withholding evidence, and misrepresenting material facts to the Court.
2. Defendants' misconduct includes improper ex parte communication with Plaintiff's comparator witness, Brian Fogarty, in violation of Rule 45.
3. Defendants' conduct resulted in the suppression and loss of critical comparator evidence essential to Plaintiff's claims.
4. Defendants exploited missing or undocketed filings and made knowingly false statements to the Court, in violation of Rule 11 and Rule 26(g).
5. Procedural irregularities, missing filings, contradictory rulings, and evidence obstruction have caused severe prejudice to Plaintiff and undermined the integrity of these proceedings.
6. The cumulative effect of Defendants' misconduct demonstrates bad faith, requires deterrence, and renders lesser sanctions ineffective.
7. The Court finds that terminating sanctions are necessary and appropriate under Fed. R. Civ. P. 37(b), 37(d), 37(e), 16(f), and the Court's inherent authority.

**ACCORDINGLY, IT IS ORDERED THAT:**

1. **Plaintiff's Motion for Default Judgment is GRANTED.**
2. **Defendants' Answer and all Affirmative Defenses are STRICKEN.**
3. **Default Judgment is ENTERED in favor of Plaintiff** on all claims asserted in the Complaint.
4. **Defendants are precluded** from introducing any evidence or testimony not timely produced due to their own misconduct.

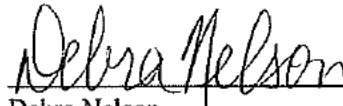
5. **Defendants shall pay monetary sanctions** in an amount to be determined, representing Plaintiff's expenses, time, and resources expended due to Defendants' bad-faith conduct.
6. The Clerk is directed to **conduct a full audit and correction of the docket**, including restoring all missing filings and correcting all procedural entries related to Plaintiff's submissions.
7. Defendants' conduct is **referred to the appropriate disciplinary authorities** for review of potential ethical violations, including obstruction of discovery and interference with subpoenaed witnesses.
8. Plaintiff is granted leave to submit a motion for damages and any additional relief arising from entry of default judgment.

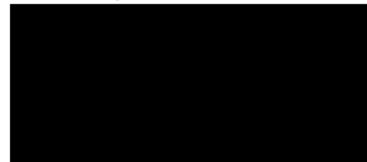
**IT IS SO ORDERED.**

United States District Judge

Date: \_\_\_\_\_

Respectfully submitted December 2, 2025,

  
Debra Nelson  
Plaintiff, Pro Se

**CERTIFICATE OF SERVICE**

I hereby certify that on December 2, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion for Default Judgment as a Terminating Sanction for Defendants' Bad-Faith Litigation Misconduct** by email addressed to:

**T. Chase Samples, Esq.**  
chase.samples@jacksonlewis.com  
**Joseph V. Valenza, Esq.**  
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Jackson Lewis P.C.

Debra Nelson  
Pro Se Plaintiff

**Exhibit List for Plaintiff's Motion for Default Judgment as a Terminating Sanction****EXHIBIT A — Judge Baker's Order Blocking the Hunt Law Subpoena**

Supports the pattern of discovery obstruction and adverse rulings without review of the evidence.

**EXHIBIT B — Judge Baker's Apple Discovery Order**

Shows judicial acceptance of Defense misrepresentations and failure to review the flash drive evidence.

**EXHIBIT C — Plaintiff's November 6, 2025 Filing (Stamped Copy)**

Proof that Plaintiff timely filed and served the motions at issue; used to defeat any "untimely" claim.

**EXHIBIT D — Plaintiff's November 14, 2025 Filing (Stamped Copy)**

Plaintiff certifies service by mail; Defense's response confirms actual receipt.

**EXHIBIT E — Defendants' November 26, 2025 Response to Plaintiff's Objection (ECF 229)**

Proof that Defense had access to Plaintiff's filings even though the filings did not appear on the docket. Confirms Defense received all materials and engaged with them.

**EXHIBIT F — Plaintiff's November 6, 2025 Email Serving Filings on Defense Counsel**

Direct evidence of timely service; defeats Defense claims of untimeliness or non-service.

**EXHIBIT G — Emails Showing Plaintiff Telling Defense Where to Find the Video on the Flash Drive**

Demonstrates Defense's accusations of "refusal to produce" were knowingly false.

**EXHIBIT H — Excerpts from October 28, 2025 Deposition Transcript**

Confirms Plaintiff clearly explained the video, its purpose, and its location under oath, and that Defense was fully aware of its irrelevance to the claims.

**Exhibit I — Defense Counsel Statement Interfering With Plaintiff's Rule 45 Subpoena to Comparator Witness Brian Fogarty**

Email from Defense counsel asserting that Brian Fogarty was "bed-ridden," despite no objection from the witness, no supporting documentation, and Defense's improper interposition between Plaintiff and her subpoenaed Rule 45 witness.

**EXHIBIT J — Exhibit J — Deposition Testimony Demonstrating Plaintiff's Severe Emotional Distress Resulting From Defendants' Conduct**

Highlighted deposition excerpts (pp. 230–231) showing Plaintiff's testimony regarding stress, loss of privacy, fear of surveillance, compromised safety, and profound emotional impact caused by Defendants' actions.

**EXHIBIT K — Apple's November 25, 2025 Motion for Extension of Time (ECF 226)**

Confirms Apple received and reviewed Plaintiff's Objections (ECF 219) before Plaintiff had access; shows the Court circulated Plaintiff's filings to a third party while they were hidden from Plaintiff.

**EXHIBIT A**

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO  
MECHANICAL CORP. d/b/a Curtiss-  
Wright Steam and Air Solutions,  
STEPHANIE LANIER, and SHANE  
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

**ORDER**

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions filed by Plaintiff, including a Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176). For the reasons set forth below, Plaintiff's Motions (Dkt. Nos. 105, 176) are **DENIED**.

**DISCUSSION**

Plaintiff filed the instant Motion to Compel on September 16, 2025. (Dkt. No. 105.) In her Motion, Plaintiff requests an Order from the Court: (1) compelling Defendants to respond to her discovery requests, (2) enforcing a nonparty subpoena directed to her former attorney, Bonnie Hunt of Hunt Law LLC, and (3) allowing Plaintiff to conduct a "narrowly tailored Rule 34(a)(2)

**EXHIBIT A**

inspection of [Defendant Curtiss Wright's] premises. (*Id.* at 1.) More specifically, Plaintiff takes issue with Defendants' purported failure to produce a "timekeeping audit trail . . . showing who altered Plaintiff's hours, when, and why," and claims that Defendants' response to two of her Requests for Production are insufficient because Defendants aver that no responsive documents exist, which Plaintiff believes is untrue. (*See generally id.*) Plaintiff also appears to contend that Defendants and/or Defense counsel "compensated her former attorney." (*Id.* at 2.) Thus, Plaintiff requests that the Court enforce the nonparty subpoena she directed to her former attorney so she may prove "bias/collusion." (*Id.*)

In response, Defendants argue that Plaintiff's Motion to Compel should be denied for several reasons. (Dkt. No. 133.) First, Defendants contend that they properly responded to Plaintiff's discovery requests and, in any event, Plaintiff's Motion to Compel is premature because the discovery responses she seeks were not yet due at the time Plaintiff filed her Motion. (*Id.* at 2–4.) Second, Defendants contend that Plaintiff never requested a Rule 34 inspection and has no legitimate basis upon which to do so. (*Id.* at 4–5.) Third, Defendants contend that Plaintiff failed to confer with Defense counsel prior to filing her Motion. (*Id.* at 5–6.) In reply, Plaintiff admits that she filed her Motion to Compel (Dkt. No. 105) before sending a formal meet and confer letter to Defense counsel but nonetheless reiterates her request that the Court compel Defendants to supplement their discovery responses and "permit a limited-scope Rule 34 inspection of their premises." (Dkt. No. 139 at 3.) Upon review, Plaintiff's Motion to Compel (Dkt. No. 105) must be **DENIED**.

At the outset, Plaintiff admits that she filed her Motion prior to conferring, or attempting to confer in good faith, with Defense counsel. (Dkt. No. 139 at 3.) Accordingly, Plaintiff did not comply with Federal Rule of Civil Procedure 37(a)(1) and her Motion to Compel could be denied

**EXHIBIT A**

on this basis, alone. *See Anderson v. Amazon.com Servs., LLC*, No. 4:23-CV-115-D, 2025 WL 1287984, at \*8 (E.D.N.C. May 2, 2025) (“This court has the discretion to deny a motion to compel for failing to meet the requirements of Fed. R. Civ. P. 37(a)(1) . . .”).

Further, as Defendants correctly note, Plaintiff seeks to compel information that does not exist and/or information that was not yet due at the time she filed her Motion. (Dkt. No. 133 at 2.) With respect to Plaintiff’s claim that Defendants must produce “the timekeeping audit trail and associated metadata,” the record confirms that Plaintiff did not submit this request to Defendants until her Third Requests for Production, which she served on September 16, 2025, the same day she filed the instant Motion. (Dkt. Nos. 105-1, 133-1.) Thus, Plaintiff’s Motion to Compel (Dkt. No. 105) is **DENIED** as premature to the extent it requests an Order compelling production of the aforementioned “timekeeping audit trail and associated metadata.”

Plaintiff’s remaining qualms with Defendants’ discovery responses ask the Court to compel Defendants to produce information that is either already in Plaintiff’s possession or does not exist. As this Court has previously informed Plaintiff, it cannot compel Defendants to furnish information they do not possess. See, e.g., *Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at \*2 (D.S.C. July 8, 2019) (“It is axiomatic that a party cannot be ordered to produce documents that do not exist.”); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at \*5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) (“[A] subpoena can only direct an individual or entity to produce materials in their ‘possession, custody, or control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”). This portion of Plaintiff’s Motion to Compel (Dkt. No. 105) is therefore **DENIED**.



**EXHIBIT A**

Turning to Plaintiff's request that the Court permit her to inspect Defendants' premises, this request must also be **DENIED**. Pursuant to Federal Rule of Civil Procedure 26, "[p]arties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case . . . ." The Court must consider "whether the burden or expense of the proposed discovery outweighs its likely benefit" when resolving discovery disputes. *Id.* Here, the undersigned agrees with Defendants that the requested inspection is "unlikely to lead to the discovery of admissible evidence." (Dkt. No. 133 at 4.) Plaintiff seems to believe that the requested inspection of Defendant Curtiss Wright's premises will allow her to inspect the area in which she used to work, as well as "printers/equipment tied to access issues; time-clock/clock-in stations relevant to Sept. 2023." (Dkt. No. 105 at 3.) However, she fails to explain how this inspection will assist her in proving her claims and/or why she cannot obtain the information she seeks through Interrogatories and Requests for Production.<sup>1</sup> (*See generally* Dkt. No. 105.) Given that Plaintiff's claims stem from events occurring more than two years ago, the undersigned expects that an inspection of Defendant Curtiss Wright's present-day premises will prove less than helpful. What is more, the requested inspection would impose a significant burden on Defendant Curtiss Wright's operations. As such, Plaintiff's request for inspection must be **DENIED**.

Plaintiff's attempt for the Court to enforce a nonparty subpoena directed to Plaintiff's prior counsel must similarly be **DENIED**. Plaintiff's Motion to Compel (Dkt. No. 105) offers limited information about this subpoena, but a review of the docket, (Dkt. Nos. 164, 171, 172), and Plaintiff's Motion to Strike, (Dkt. No. 176), provides additional context.

<sup>1</sup> In fact, Plaintiff seems to suggest that the inspection is only necessary if "Defendants fail to produce the timekeeping audit logs and complete HR/disciplinary files identified . . . or if the production reveals gaps that require physical verification." (Dkt. No. 105 at 4.)

**EXHIBIT A**

The record reflects that Plaintiff has filed two “Notices of Service of Subpoena” with the Court—one on October 8, 2025 and one on October 9, 2025—which both pertain to the same nonparty subpoena seeking “non-privileged communications and financial records reflecting contacts or payments between Curtiss-Wright (including its outside counsel) and Hunt/Hunt Law concerning Plaintiff.” (Dkt. Nos. 164, 171.) Plaintiff appears to have “served” the subpoena at issue on Hunt Law LLC via the South Carolina Secretary of State. (Dkt. Nos. 164, 171.) On October 9, 2025, Andrew Countryman of Countryman Law Firm filed an objection to Plaintiff’s Notices of Service on behalf of Bonnie Hunt and Hunt Law LLC, explaining that the subpoena at issue was not validly served, and that the materials requested by Plaintiff are irrelevant. (Dkt. No. 172.)

In the Motion to Strike Plaintiff filed on October 14, 2025, she asks that the Court “strike the October 9, 2025 filing by non-party counsel.” (Dkt. No. 176 at 1.) Plaintiff contends that the subpoena at issue was “expressly approved by this Court,” and that she is entitled to a “Protective Order directing that Mr. Countryman and Hunt Law, LLC shall make no further filings in this action without first obtaining leave of Court, except where responding to a direct Court order or subpoena.” (*Id.* at 4.) Plaintiff further requests that the Court “[a]ffirm” that her subpoena service to the South Carolina Secretary of State—as opposed to service upon Bonnie Hunt as the registered agent for Hunt Law, LLC—was “completed in good faith and consistent with the Court’s prior order.” (*Id.*)

Upon review, the undersigned finds no basis on which to grant Plaintiff’s Motion. Critically, this Court did not “expressly approve” the nonparty subpoena at issue here. (*See* Dkt. No. 73.) Plaintiff’s claims to the contrary are plainly incorrect. (*See* Dkt. Nos. 73, 105, 176.)

In addition, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis []

## EXHIBIT A

applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). Ultimately, giving the nonparty status “special weight,” a court must determine “whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.” *Id.*; *Spring v. Bd. of Trustees of Cape Fear Cmty. Coll.*, No. 7:15-CV-84-BO, 2016 WL 4204153, at \*1 (E.D.N.C. Aug. 8, 2016). Here, it does not. In fact, the “non-privileged communications” between Bonnie Hunt and/or Hunt Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff’s Fourth Amended Complaint.<sup>2</sup> (*See generally* Dkt. Nos. 79, 105, 164, 171, 172, 176, 178.) What is more, Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants. (*See generally* Dkt. Nos. 105, 176.)<sup>3</sup>

Further, Plaintiff’s request for a protective order prohibiting attorneys Countryman and Hunt from submitting additional filings with the Court simply lacks merit. Not only does this request misconstrue Federal Rule of Civil Procedure 26(c), but the record clearly indicates that the only filings submitted by Countryman on behalf of Hunt pertain to the Notices of Service of Subpoena Plaintiff filed involving Bonnie Hunt and Hunt Law LLC. (*See generally* Dkt. Nos. 172, 179.) Accordingly, Plaintiff’s Motion (Dkt. No. 176) is **DENIED IN FULL**.

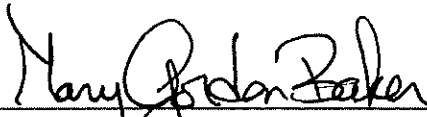
<sup>2</sup> It is worth noting that Plaintiff was provided a copy of her casefile when Bonnie Hunt withdrew as counsel for Plaintiff. (Dkt. No. 172 at 1.)

<sup>3</sup> Because the information requested in the subpoena at issue is irrelevant to Plaintiff’s claims, whether the subpoena was validly served is immaterial and the undersigned need not address this argument; Plaintiff’s requests to enforce the subpoena are **DENIED**, regardless.

**EXHIBIT A****CONCLUSION**

For the foregoing reasons, Plaintiff's Motion to Compel (Dkt. No. 105) and Motion to Strike (Dkt. No. 176) are **DENIED**.

**IT IS SO ORDERED.**

  
\_\_\_\_\_  
MARY GORDON BAKER  
UNITED STATES MAGISTRATE JUDGE

October 20, 2025  
Charleston, South Carolina

**EXHIBIT B**

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO  
MECHANICAL CORP. d/b/a Curtiss-  
Wright Steam and Air Solutions,  
STEPHANIE LANIER, and SHANE  
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

**ORDER**

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions, including a Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) filed by Plaintiff, and a Motion for Protective Order filed by nonparty Apple Inc. ("Apple") (Dkt. No. 129). For the reasons set forth below, the undersigned **DENIES** Plaintiff's Motions to Compel (Dkt. Nos. 103, 173) and **GRANTS** Apple's Motion for Protective Order (Dkt. No. 129).

**DISCUSSION**

Plaintiff filed the first Motion to Compel at issue (Dkt. No. 103) on September 12, 2025, and the second Motion to Compel at issue (Dkt. No. 173) on October 10, 2025. Both Motions

## EXHIBIT B

pertain to an August 29, 2025 subpoena directed to Apple in which Plaintiff requested that Apple produce “account and device-level technical logs relevant to Plaintiff’s claims of cyber intrusion and unauthorized access.” (*See generally* Dkt. Nos. 103, 173.) More specifically, the subpoena requested “[f]or the time period of August 1, 2023, to the present,” the following information pertaining to Plaintiff’s Apple ID and telephone numbers:

1. All logs, technical reports, and records of unauthorized or remote access to Plaintiff’s Apple devices (including iPhones, iPads, and MacBooks) . . .
2. All logs of Personal Identification Number (PIN) unlock attempts, system overrides, and remote activations or commands sent to the devices.
3. Complete documentation of any and all agreements, policies, or procedures with government agencies or third parties that permit or facilitate access to device firmware or user data . . . .
4. All logs of system-wake or power-on events that occurred without direct user interaction or scheduled automated tasks.
5. All records of any “Find My” or similar location-tracking services being activated or accessed remotely . . . .

(Dkt. No. 103-1 at 3.)

Plaintiff’s first Motion to Compel asks the Court to compel Apple to comply with the subpoena, to “produce all documents and electronically stored information” requested, and to “[o]rder Apple to preserve all responsive logs and records pending production.” (Dkt. No. 103 at 2; *see also* Dkt. No. 115.) Plaintiff’s Renewed Motion to Compel asks the Court to “order [Apple] to produce all documents and electronically stored information responsive to Plaintiff’s subpoena, including records and logs dated after August 27, 2023, particularly those surrounding [a] September 10, 2025 incident.” (Dkt. No. 173 at 3.) Plaintiff’s Renewed Motion to Compel also asks the Court to “[r]equire Apple to certify that all responsive materials have been produced,” and to “[a]ward Plaintiff reasonable expenses and costs incurred in making this motion . . . .” (*Id.*)



**EXHIBIT B**

At the outset, the undersigned notes that Plaintiff filed her first Motion to Compel before Apple's response to the August 29, 2025 subpoena was due. (*See generally* Dkt. Nos. 103, 128, 128-1.) Plaintiff's first Motion to Compel (Dkt. No. 103) is therefore **DENIED** as premature.

Plaintiff's Renewed Motion to Compel (Dkt. No. 173) is also **DENIED**. The record makes clear that Apple fully complied with Plaintiff's subpoena on September 23, 2025, producing responsive records where able and otherwise confirming that Apple does not possess records responsive to certain of Plaintiff's requests. (*See generally* Dkt. Nos. 128-1, 128-2.)

Plaintiff nonetheless takes issue with Apple's response to her subpoena because Apple's production purportedly "ends on August 27, 2023—almost a year before the subpoena was served—and omits critical data for the period in which Plaintiff's iPhone experienced repeated system overrides and remote activations, including [a] September 10, 2025 incident reported directly to Apple." (Dkt. No. 173 at 1.) However, as Apple correctly notes, Apple's production "contained records as recent as August 23, 2025 and August 14, 2025," and Plaintiff never requested that Apple produce records pertaining to a "September 10, 2025 incident." (Dkt. No. 174 at 4–5; *see also* Dkt. Nos. 103-1, 174-2.)

Further, the record indicates that Apple likely does not have the information Plaintiff seeks regarding the alleged "September 10, 2025 incident." (*See generally* Dkt. No. 128-1.) As this Court has repeatedly informed Plaintiff, it cannot compel entities to furnish information they do not possess. *See, e.g., Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at \*2 (D.S.C. July 8, 2019) ("It is axiomatic that a party cannot be ordered to produce documents that do not exist."); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at \*5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) ("[A] subpoena can only direct an individual or entity to produce materials in their 'possession, custody, or

**EXHIBIT B**

control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”).

Accordingly, Plaintiff’s Renewed Motion to Compel (Dkt. No. 173) is **DENIED**.

For similar reasons, Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**.

As the Court has previously explained, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). This is so because “[b]ystanders should not be drawn into the parties’ dispute without some good reason, even if they have information that falls within the scope of party discovery.” *Id.* A subpoena subjects a nonparty to undue burden if it “seeks information irrelevant to the case or that would require [the] non-party to incur excessive expenditure of time or money.” *Cook v. Howard*, 484 F. App’x 805, 812 n.7 (4th Cir. 2012).

Courts also consider the general discovery standards in Federal Rule of Civil Procedure 26 when determining the limits to impose on discovery sought from a nonparty. *Id.* at 812 (“Although Rule 45(c) sets forth additional grounds on which a subpoena against a third party may be quashed, taking into consideration facts peculiar to their status as a non-party, those factors are co-extensive with the general rules governing all discovery that are set forth in Rule 26.”); *see also Jordan*, 921 F.3d at 189 (“As under Rule 26, the ultimate question is whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.”). For example, courts will allow “[a] party or any person from whom discovery is sought [to] move for a protective order in the court where the action is pending. . . . [and may], for good cause, issue an order to protect a party or person

**EXHIBIT B**

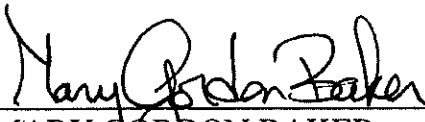
from annoyance, embarrassment, oppression, or undue burden and expense” by forbidding or limiting the scope of discovery. Fed. R. Civ. P. 26(c)(1).

Here, Plaintiff’s persistent filing of premature and/or frivolous discovery motions has subjected Apple to the very type of “undue burden and expense” Federal Rule of Civil Procedure 26(c)(1) seeks to curtail. Apple has submitted evidence indicating that it promptly and fully complied with the subpoena it received from Plaintiff, and that Apple’s attorneys and representatives have consistently worked with Plaintiff to resolve her qualms without involving the Court. Nonetheless, Plaintiff has taken issue with Apple’s production at every turn and has failed to reasonably resolve her issues with Apple directly. Thus, Apple has been forced to incur additional expenses by appearing before this Court to litigate issues that could have been easily resolved out of Court. Against this background, the undersigned finds that Apple is entitled to a protective order prohibiting Plaintiff from issuing additional discovery requests to Apple in this case. Apple’s Motion for Protective Order (Dkt. No. 129) is therefore **GRANTED**.

**CONCLUSION**

For the foregoing reasons, Plaintiff’s Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) are **DENIED**, and Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**.

**IT IS SO ORDERED.**

  
\_\_\_\_\_  
MARY GORDON BAKER  
UNITED STATES MAGISTRATE JUDGE

October 21, 2025  
Charleston, South Carolina

## EXHIBIT C

IN THE UNITED STATES DISTRICT COURT  
DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

**v.**

**Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air Solutions  
STEPHANIE LANIER, and  
SHANE SABLITSKY,**

**Defendants.**

C.A. No.: 2:25-CV-00405-RMG-MGB

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2025 1601.6 P.21.25

**PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S ORDERS (ECF NOS. 192  
& 194)**

**ADDRESSED TO THE HONORABLE RICHARD M. GERGEL PURSUANT TO  
FED. R. CIV. P. 72(a)**

## I. INTRODUCTION

Plaintiff **Debra Nelson**, appearing pro se, respectfully submits these objections to two orders entered by Magistrate Judge Mary Gordon Baker:

(1) the **October 20, 2025 Order (ECF No. 192)** denying Plaintiff's Motion to Compel and Motion to Strike related to the subpoena issued to nonparty **Hunt Law LLC**, and

(2) the **October 21, 2025 Order (ECF No. 194)** denying Plaintiff's Motions to Compel Apple Inc. and granting Apple's Motion for Protective Order.

Both rulings are **clearly erroneous and contrary to law** under Fed. R. Civ. P. 72(a) because they misrepresent the procedural record, contradict **Judge Molly H. Cherry’s prior discovery authorizations**, and improperly restrict Plaintiff’s lawful access to evidence central to her claims.

**EXHIBIT C**

Case No. 2:25-CV-00405-RMG-MGB

**II. BACKGROUND****A. The Hunt Law LLC Subpoena (Order ECF 192)**

On or about **September 25, 2025**, Plaintiff submitted a proposed subpoena to Hunt Law LLC seeking non-privileged records showing any financial or communication link between Curtiss-Wright, its counsel, and Plaintiff's former attorney.

The subpoena was held under **judicial review for nine days**, during which time **Judge Cherry's case manager confirmed that "the Judge has to review it before it can be signed."**

Following that review, the Clerk issued and mailed the subpoena, bearing the Court's signature and official caption. Plaintiff filed **Notices of Service** on October 8 and 9, 2025 (ECF Nos. 164 & 171).

Judge Baker's subsequent statement that "this Court did not expressly approve the subpoena" is **factually inaccurate and contradicted by the record and Court process**. The subpoena's issuance followed a judicial authorization step, not a self-issued filing.

**B. Apple Protective Order (Order ECF 194)**

Plaintiff's subpoena to Apple Inc. sought **device-level technical logs and access records** relevant to claims of cyber intrusion and unauthorized monitoring. Apple produced limited materials and moved for a **Protective Order**.

Without conducting an evidentiary hearing or requiring a specific showing of "good cause" under **Rule 26(c)**, Judge Baker **granted Apple's motion and prohibited Plaintiff from issuing additional discovery requests to Apple**.

This order conflicts with Judge Cherry's prior authorization for third-party subpoenas, exceeds the narrow protections permitted under Rule 26, and effectively blocks access to critical electronic evidence necessary to prove Plaintiff's claims of stalking, retaliation, and data compromise.

**EXHIBIT C**

Case No. 2:25-CV-00405-RMG-MGB

**III. STANDARD OF REVIEW**

Under **Fed. R. Civ. P. 72(a)**, a district judge must “modify or set aside any part of a magistrate judge’s order that is clearly erroneous or contrary to law.” A finding is clearly erroneous when, although there is evidence to support it, the reviewing court is left with the definite and firm conviction that a mistake has been committed. *United States v. U.S. Gypsum Co.*, 333 U.S. 364 (1948).

**IV. ARGUMENT****A. Judge Baker’s Finding That the Court Did Not Approve the Hunt Law Subpoena Is Clearly Erroneous**

The docket, issuance timeline, and direct statement from the case manager confirm that the subpoena was reviewed and approved by Judge Cherry prior to issuance.

Because the Clerk cannot issue a Rule 45 subpoena for a pro se party without judicial review, Judge Baker’s later finding is demonstrably false and unsupported by any evidence.

**B. The Hunt Law Order Improperly Reverses Prior Judicial Authorization**

Judge Cherry’s standing order permitting Plaintiff to issue third-party subpoenas remains in effect. Judge Baker’s order, which denies the validity of that authorization without notice or findings, constitutes a **de facto reversal of a judicial act** and is contrary to established law governing magistrate review.

**C. The Apple Protective Order Lacks Good Cause and Violates Rule 26(c)**

Rule 26(c)(1) allows a protective order only for “good cause” shown, and requires the movant to demonstrate specific prejudice or harm. Apple presented no affidavit, evidence, or argument of undue burden beyond general inconvenience.

Plaintiff’s discovery requests were narrowly tailored to her Apple ID and specific device logs within relevant timeframes. The magistrate’s conclusion that Apple “fully complied” and that



**EXHIBIT C**

Case No. 2:25-CV-00405-RMG-MGB

further discovery constituted “undue burden” is unsupported and contrary to Fourth Circuit precedent.

By prohibiting Plaintiff from issuing *any* further discovery to Apple, the Order imposes an overbroad restriction inconsistent with Rule 45(d)(3)(A) and **Virginia Dep’t of Corr. v. Jordan**, 921 F.3d 180, 189 (4th Cir. 2019).

**D. Both Orders Deny Plaintiff Access to Material Evidence and Prejudice Her Case**

Plaintiff’s case involves claims of electronic interference, retaliation, and unauthorized access to private data. Limiting subpoenas to former counsel and Apple effectively prevents Plaintiff from obtaining the very records that could corroborate these allegations.

Such blanket restrictions deprive Plaintiff of due process and the right to obtain relevant, non-privileged discovery in support of her claims.

**V. RELIEF REQUESTED**

For these reasons, Plaintiff respectfully requests that the Honorable **Richard M. Gergel**:

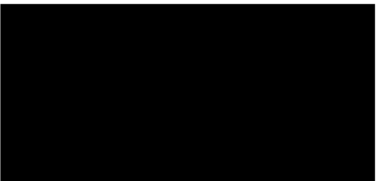
1. **Vacate or modify** Magistrate Judge Baker’s Orders dated October 20 and 21, 2025 (ECF Nos. 192 & 194);
2. **Reinstate Judge Cherry’s authorization** allowing Plaintiff to issue third-party subpoenas under Rule 45;
3. **Vacate or lift the Protective Order** granted to Apple Inc. and permit continued discovery limited to relevant technical data and device-access logs;
4. Direct that future discovery disputes be reviewed by the District Judge or reassigned to ensure continuity and fairness; and
5. Grant such further relief as the Court deems just and proper.

Respectfully submitted 6th of November, 2025,

  
Debra Nelson

**EXHIBIT C**

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff, Pro Se  
**CERTIFICATE OF SERVICE**

I hereby certify that on this 6th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Objection to Magistrate Judge's Orders (ECF NOS. 192 & 194)** by email addressed to:

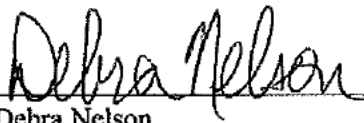
**T. Chase Samples, Esq.**

chase.samples@jacksonlewis.com

**Joseph V. Valenza, Esq.**

joseph.valenza@jacksonlewis.com

Respectfully submitted 6th of November, 2025,

  
Debra Nelson  
Plaintiff, Pro Se  


**EXHIBIT D**

RCVD - USDC - CHAS, SC  
2025 NOV 14 PM 1:20

IN THE UNITED STATES DISTRICT COURT  
DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air Solutions  
STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants,

C.A. No.: 2:25-CV-00405-RMG-MGB

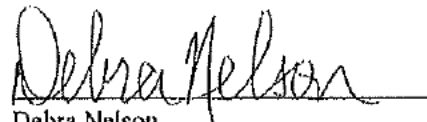
**PLAINTIFF'S NOTICE REGARDING UNDOCKETED FILING SUBMITTED ON  
NOVEMBER 6, 2025**

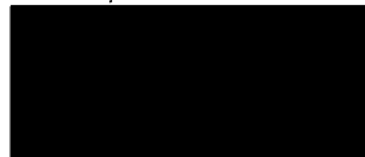
Plaintiff Debra Nelson, appearing pro se, respectfully submits this Notice to advise the Court of the following:

1. On November 6, 2025, Plaintiff submitted for filing "Plaintiff's Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194)", addressed to the Honorable Richard M. Gergel pursuant to Fed. R. Civ. P. 72(a).
2. The Clerk's Office accepted the filing and returned to Plaintiff a stamped copy reflecting the November 6, 2025 filing date.
3. As of the date of this Notice, the Objections do not appear on the docket, and Plaintiff has not received a deficiency notice or any communication indicating the filing was rejected or requires correction.
4. Plaintiff files this Notice to preserve the record, clarify that the Objections were timely submitted and accepted by the Clerk, and to request that the Court take notice of the pending docketing issue.

A copy of the stamped filing is attached hereto for the Court's reference.

Respectfully submitted 14th of November, 2025,

  
Debra Nelson  
Plaintiff, Pro Se



**EXHIBIT E**

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

|                                         |   |                                |
|-----------------------------------------|---|--------------------------------|
| DEBRA NELSON,                           | ) |                                |
|                                         | ) |                                |
| Plaintiff,                              | ) |                                |
|                                         | ) |                                |
| v.                                      | ) |                                |
|                                         | ) |                                |
| Curtiss Wright Electro Mechanical Corp. | ) | C.A. No. 2:25-cv-00405-RMG-MGB |
| d/b/a Curtiss-Wright Steam and Air      | ) |                                |
| Solutions, STEPHANIE LANIER, and        | ) |                                |
| SHANE SABLITSKY,                        | ) |                                |
|                                         | ) |                                |
| Defendants.                             | ) |                                |

---

**DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE  
JUDGE'S ORDERS**

Defendants, by and through their undersigned counsel, submit this Response to Plaintiff's Objections to Magistrate Judge's Orders (ECF Nos. 192 & 194). For the reasons set forth below, Plaintiff's Objections have no basis in law and should be overruled.

As an initial matter, Plaintiff's objections to Magistrate Judge Baker's October 21, 2025, Order (ECF No. 194) applies relating to Plaintiff's discovery dispute with a third party, Apple, Inc. Defendants take no position on that dispute.

**A. Judge Baker's October 20, 2025, Ruling is Not Clearly Erroneous or Contrary to Law.**

Plaintiff's Objections to Judge Baker's October 20, 2025, Order are untimely and should be overruled on this basis alone. On October 20, 2025, Judge Baker entered an order on one of Plaintiff's pending Motions to Compel (ECF No. 105), in which she ruled, in relevant part, that Plaintiff cannot compel non-party Hunt Law LLC to respond to a subpoena because the information sought was not relevant to her claims and Plaintiff failed to demonstrate why the

**EXHIBIT E**

information sought could not be obtained from Defendants.<sup>1</sup> On November 14, 2025, approximately 25 days after the Court's Order, Plaintiff lodged her Objections. Objections to a Magistrate Judge's non-dispositive order must be made within 14 days after being served with a copy of the Order. Here, Plaintiff served her objections over ten days too late. As such, her Objections should be overruled.<sup>2</sup>

In addition, Plaintiff's Objections are facially frivolous and should be overruled on the merits. As Plaintiff correctly points out, Judge Baker's Order should be modified or set aside only if it is clearly erroneous or contrary to law. Fed. R. Civ. P. 72(a). It was not.

In fact, *enforcing Plaintiff's subpoena would be clearly erroneous*. Plaintiff seeks to subpoena all communications between Hunt Law and defense counsel because she believes that defense counsel and/or Curtiss Wright paid Plaintiff's former attorney to drop this case.<sup>3</sup> See ECF No. 196. There is absolutely no support whatsoever for this conspiracy theory. Judge Baker correctly found that "the non-privileged communications between Bonnie Hunt and/or Hut Law LLC and Defendants and/or Defense counsel appear to have absolutely no bearing on the claims set forth in Plaintiff's Fourth Amended Complaint." (ECF No. 192 at 6.) Rule 26 defines that scope of discovery as that relevant to "any party's claim or defense." Fed. R. Civ. P. 26(b)(1). There is no claim in this lawsuit even tangentially related to the subject matter of Plaintiff's

---

<sup>1</sup> Judge Baker's October 20 Order addressed other issues as well, but Plaintiff failed to lodge any objections to those portions of the Order. As such, those portions of the Order should stand without objection.

<sup>2</sup> To the extent Plaintiff attempts to argue that she did not receive timely notice of the October 20, 2025 Order from the Court, it is clear from subsequent filings by Plaintiff that she received the Order no later than October 27. See Plaintiff's Motion for Recusal, ECF No. 199.

<sup>3</sup> Plaintiff's Notices of Subpoena to Bonnie Hunt and Hunt Law inaccurately state that they include Schedule A's showing the document requests. Plaintiff has repeated this on three separate occasions, so it is unclear whether these are intentionally omitted. See ECF Nos. 134, 164, 171. Defendants are only aware of the documents Plaintiff seeks through contemporaneous filings.

**EXHIBIT E**

subpoena to Bonnie Hunt. While Judge Cherry may have authorized Plaintiff to send subpoenas to third parties by allowing her to request the subpoenas from the Court, the Court did not in any way authorize Plaintiff's enforcement of that subpoena. Because the information requested by Plaintiff in her subpoena fell outside the scope of Rule 26, Judge Baker's Order denying Plaintiff's Motion to enforce that subpoena was not clearly erroneous – it was consistent with the scope of permissible discovery in Rule 26.

Judge Baker also rules that "Plaintiff has failed to demonstrate why she cannot obtain the requested materials from Defendants." (ECF No. 192 at 6.) In fact, on October 16, 2025, Defendants produced to Plaintiff all communications between defense counsel and Bonnie Hunt.<sup>4</sup> Therefore, Plaintiff's Objections regarding this subpoena were moot when filed. As such, Plaintiff's Objections should be overruled and Judge Baker's Order affirmed.

**B. Defendants' Oppose Plaintiff's Request to Have All Discovery Disputes Reviewed by the District Judge or Reassigned.**

In her Objections, Plaintiff seeks to have all discovery disputes reviewed by the District Judge or reassigned to a different Magistrate Judge. She fails to cite any authority to support this request and, though Defendants are confident in any District Judge or Magistrate Judge's ability to rule on Plaintiff's discovery motions, the practical reality is that Plaintiff's request is not feasible given the volume of motions that she files. As of November 25, 2025, there have been 227 docket entries in a case that is less than a year old, including over 20 different motions, not including responses and replies, filed by Plaintiff in approximately the last two months. Having all discovery disputes reviewed by the district judge would waste judicial resources and further delay this

---

<sup>4</sup> On October 30, the Court requested that Defendants provide Plaintiff with all communications between Defense Counsel and Bonnie Hunt or provide Plaintiff with an affidavit that such communications do not exist. *See* ECF 204. Defendants had already produced all of those communications to Plaintiff prior to that Order.



**EXHIBIT E**

litigation. It would additionally be prejudicial to Defendants, allowing Plaintiff a second bite at the apple because she is merely unsatisfied with prior judicial review and force Defendants to unnecessarily expend financial resources relitigating resolved discovery issues.

Likewise, Defendants oppose reassigning this case to another magistrate judge because the only basis for Plaintiff's request is that Judge Baker has ruled against her. Plaintiff stated as much in her Motion for Recusal where her chief complaint is that contested issues were not being resolved in her favor. (ECF No. 199.) Defendants are aware that Plaintiff has filed similar motions in other lawsuits, which Plaintiff had also referenced in her Motion for Recusal, stating, for example:

"This case also fits into a broader and troubling pattern. In multiple separate matters involving [an attorney and judge in a state law case], Plaintiff has encountered similar irregularities in judicial handling and denials of procedural fairness. Each of these judges demonstrated conduct that has been or will be the subject of formal judicial misconduct complaints filed with the appropriate disciplinary authorities."

ECF No. 199 §4, ¶6 (names and case information omitted for brevity). Even if this case is reassigned to a different Magistrate Judge, once Plaintiff receives a ruling that is not in her favor, she will allege bias and ask for the case to be reassigned again. Therefore, Defendants respectfully ask the Court to overrule Plaintiff's Objections in their entirety.

Respectfully submitted this 26th day of November, 2025.

s/ Joseph V. Valenza

T. Chase Samples (Fed. I.D. No. 10824)

Email: [Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: [Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com)

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

**EXHIBIT E**

4915-7561-3052, v. 1

**EXHIBIT E**

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions,  
STEPHANIE LANIER, and  
SHANE SABLITSKY,

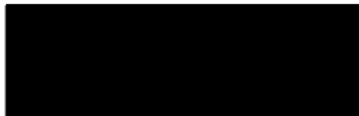
Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

**CERTIFICATE OF SERVICE**

The undersigned certifies that on November 26, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S OBJECTIONS TO THE MAGISTRATE JUDGE'S ORDERS** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

***Pro Se Plaintiff***s/ Joseph V. Valenza

Joseph V. Valenza

Dated: November 26, 2025

11/30/25, 8:50 PM

**EXHIBIT F**

Gmail - Filed Motions for 11.6.2025



Debra Nelson

**Filed Motions for 11.6.2025**

1 message

Debra Nelson &lt;[REDACTED]&gt;

Thu, Nov 6, 2025 at 3:09 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Counsel,

See copies of motions filed with the court toady 11/6/2025

**2 attachments****Filed Notice of Opposition to Defense Motion to Compel.pdf**  
2889K**Objections to Magistrate Judge Orders ECF 192\_194.pdf**  
3812K

11/30/25, 10:24 PM

**EXHIBIT G**

Gmail - Nelson v. Curtiss Wright Electro Mechanical Corp., et al



Debra Nelson &lt;nelsondebra62@gmail.com&gt;

**Nelson v. Curtiss Wright Electro Mechanical Corp., et al**

1 message

Debra Nelson &lt;[REDACTED]&gt;

Wed, Oct 15, 2025 at 9:08 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

**Subject:** Response to Requests for Production Nos. 1, 3, and 21

Dear Mr. Samples and Mr. Valenza,

In response to Defendants' First Set of Requests for Production (Nos. 1, 3, and 21), the video referenced in your request has already been filed with the Court as part of the official record. It was submitted on **May 13, 2025**, as **ECF No. 40**, on a flash drive.

That video is approximately 30 minutes long and is accessible through the Court's docket and therefore does not require any further production. The video was created to document events I personally experienced and contains no slanderous or defamatory content.

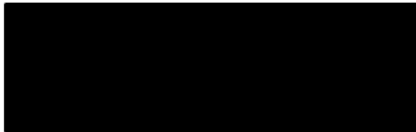
Per the advice of my former attorney, **Bonnie Hunt**, I removed the video from all of my social media accounts to prevent potential misuse or misrepresentation. Since the video is already part of the court record and no other relevant videos or posts exist, there is **no basis for Defendants to access my personal social media accounts**.

Please let me know if you have any difficulty locating the video in the docket.

Sincerely,

**Debra Nelson**

Pro Se Plaintiff



**EXHIBIT H**

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 1

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical

Corp. d/b/a Curtiss-Wright Steam

and Air Solutions, Stephanie Lanier,

and Shane Sablotsky,

Defendants.

DEPOSITION: Debra E. Nelson

DATE: October 28, 2025

TIME: 10:20 a.m. EST

LOCATION: Veritext Legal Solutions

28 Bridgeside Boulevard, Suite 205

Mount Pleasant, SC

TAKEN BY: Counsel for the Plaintiff

REPORTED BY: Rosemary F. Grogan, CSR, RPR

Veritext Legal Solutions

800.743.DEPO (3376)

calendar-carolinas@veritext.com

www.veritext.com

Responses in yellow is CW Defense Counsel T. Chase Samples  
Responses in teal blue are the Plaintiff Debra Nelson

## EXHIBIT H

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 29

1 A. Mm-hmm.

2 Q. Is that a yes?

3 A. Yeah.

4 Q. Did you have that account when you worked at  
5 Curtiss-Wright?

6 A. Yes.

7 Q. Have you posted anything on that account  
8 related to your employment or your claims in this  
9 lawsuit?

10 A. I did post a video, but it was mostly about  
11 the events that were happening surrounding, basically,  
12 after I was terminated, the events that occurred after.  
13 And it was more so I posted that video on my social  
14 media accounts for safety reasons because I felt that  
15 would keep me safe because I felt somebody was  
16 potentially going to do me bodily harm.

17 Q. Why did you think that?

18 A. Because I had unknown people showing up at my  
19 house. I had an unknown man standing in front of my  
20 house at around 1 o'clock in the morning, just standing  
21 there on the cul-de-sac not moving. I sat in my car to  
22 watch to see what he was going to do and he was just  
23 standing there not moving for several minutes. And I  
24 said something ain't right, so I called the police.

25 Q. Okay. Did they ever arrest that man --

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson



## EXHIBIT H

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 33

1 another process center in D.C. And then after I tried  
2 to contact the postal manager or whatever, then the mail  
3 was finally delivered.

4 But before then, it kept on bouncing -- from  
5 the tracking, it kept bouncing back and forth between  
6 distribution centers and Washington, D.C. I talked  
7 about that.

8 What else did I talk about? About my car  
9 being hacked into. I have a video of that. Two videos  
10 of that, actually. Cell phones, turning them off and  
11 then they turn on by themselves.

12 Q. Have you talked about all those things in the  
13 videos that you posted online?

14 A. Yes, because as long as I stayed quiet, I know  
15 that prevented -- that would keep me in danger. So long  
16 I said something and made it public, then the likelihood  
17 of something happening to me was lessened.

18 Q. Do you still have that video?

19 A. I do, and I've already submitted it to the  
20 court.

21 Q. But you have not produced a copy directly to  
22 defendants in this case, correct?

23 A. It was submitted to the court and you can  
24 obtain that information from the court.

25 Q. So that's a yes to my question, you have not

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

**EXHIBIT H**

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 32

1 A. Yes.

2 Q. Okay. Do you have any evidence to indicate  
3 that anyone at Curtiss-Wright was in any way connected  
4 to that cell phone?

5 A. How would I know that? I don't know who --  
6 who is responsible.

7 Q. You don't have any evidence --

8 A. Not yet. Discovery is still not complete.

9 Q. Let me finish my question.

10 You don't have any evidence to connect that  
11 cell phone to Curtiss-Wright?

12 A. Not at the moment.

13 Q. Okay. You said you have a TikTok account. Do  
14 you have one or more?

15 A. No, I think I've just got one.

16 Q. Do you know your user name for that one?

17 A. No.

18 Q. Have you posted on TikTok anything about  
19 Curtiss-Wright or your lawsuit?

20 A. I'll reiterate. I posted on all my social  
21 accounts that video that detailed all the events that  
22 were -- that were occurring, the stalking, the man and  
23 the woman showing up at my front door, the -- me sending  
24 mail to Washington, D.C. and it's been 10 days bouncing  
25 back and forth between one process center in D.C. to

## EXHIBIT H

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

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1 produced it directly to defendants?

2 A. No, and I'm not going to.

3 Q. How is the video that you posted on social  
4 media related to Curtiss-Wright in any way?

5 A. I will say this again. I said the video  
6 detailed events that were happening to me. The only  
7 reference I made in that video about Curtiss-Wright is  
8 that I worked that company. I was bullied by a male  
9 engineer, which is fact, it is documented, and that I  
10 was terminated, which is also facts and documented.

11 So that was the only reference made by me to  
12 Curtiss-Wright.

13 Q. You said you were bullied by a male engineer.  
14 Who are you referring to?

15 A. Brian Foley.

16 Q. I'm going to come back to Brian later on and  
17 ask you some questions about that.

18 Anything else that you've you posted or that  
19 you said in that video that's related to your employment  
20 at Curtiss-Wright?

21 A. That's the only thing about Curtiss-Wright I  
22 said.

23 Q. Okay. You also said you had two videos of  
24 your car. Do you still have those videos?

25 A. I have all my videos.

**EXHIBIT H**

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

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1 Q. That happened in Arizona; is that right?

2 A. It happened in Arizona.

3 Q. Okay. So the two car video, you said you  
4 still have those?

5 A. Yes.

6 Q. Have you produced those in this case?

7 A. It's with the court. Every video pertaining  
8 to me be surveilled, my devices being hacked were all  
9 submitted to the court.

10 Q. Just to clarify, you have not provided them  
11 to --

12 A. No.

13 Q. -- Defendants in this case?

14 Do you intend to do so?

15 A. No. You can get it from the court.

16 Q. Have you made any other videos related to your  
17 claims in this case?

18 A. Yes.

19 Q. What other videos did you make?

20 A. Everything. I journal everything. I document  
21 everything in case somebody tries to kill me other  
22 people have those videos.

23 Q. What other videos have you made related to  
24 this case?

25 A. Everything, like the -- the police officer

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson



## EXHIBIT H

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 37

1 showing up at my house, the -- the videos of my phone  
2 not working. I'm recording videos on my iPhone and  
3 there's no sound, so -- so there's several videos. So  
4 they're blocking me from trying to --

5 I post on social media sometimes and so if I  
6 post a video -- and it can be about anything, they would  
7 just disable my phone to where the videos have no sound.  
8 My iPhone and then if I wanted to really post a video, I  
9 would use my Android and most times that would work.

10 Q. So the videos that you've taken related to  
11 Curtiss-Wright, have you given all those videos to the  
12 court?

13 A. Yes. Anything that pertains to me being  
14 surveyed [sic] me, me being followed, devices -- strange  
15 devices appearing at my house, those were all given to  
16 the court. And I also maintain copies in other places.  
17 Other people have copies as well.

18 Q. You haven't given any of those videos to  
19 defendants during discovery in this case, have you?

20 A. No, the -- I gave it -- I gave the court a  
21 flash drive because there was so much videos and  
22 documentation. Yeah, it would have been burdensome.

23 Q. Do you have any videos of your coworkers at  
24 Curtiss-Wright?

25 A. Coworkers, no.

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Responses in yellow is CW Defense Counsel T. Chase Samples

Responses in teal blue are the Plaintiff Debra Nelson

**EXHIBIT H**

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

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1 A. That they're racist.

2 Q. Anything else?

3 A. That they bullied me.

4 Q. Anything else?

5 A. That's it.

6 Q. Do you still have those videos?

7 A. There was no videos. Those were comments but  
8 they -- they were deleted.

9 Q. Did you delete those before or after you filed  
10 this lawsuit?

11 A. I don't know when she advised me. It could  
12 have been before. I'm not sure, but she told me to take  
13 the video down and, you know, all that kind of stuff.

14 Q. But you had at least reached out to Bonnie  
15 Hunt about bringing this lawsuit at the time that --

16 A. She was my attorney. I paid this lady to  
17 represent me, which she ended up trying to sabotage me,  
18 but yes, she was my attorney.

19 Q. Okay. But going back to my question, though,  
20 you had retained her for the purpose of filing a lawsuit  
21 against Curtiss-Wright at the time that she told you to  
22 delete those videos?

23 A. Yes.

24 Q. And you had already filed a charge -- or  
25 multiple charges with the EEOC related to your

11/9/25, 5:19 PM

## EXHIBIT I

Gmail - Former Employees



Debra Nelson &lt;nelsondebra62@gmail.com&gt;

---

**Former Employees**

12 messages

---

Debra Nelson <[REDACTED]> Sun, Oct 26, 2025 at 5:20 PM  
To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Counsel,

I need to confirm the addresses for former employees Antonio Coleman and Brian Fogarty

Respectfully,  
Debra Nelson

---

Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com> Wed, Oct 29, 2025 at 9:51 AM  
To: Debra Nelson <[REDACTED]>  
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Ms. Nelson:

Antonio Coleman's last known address is:

Antonio Coleman

[REDACTED]

Curtiss Wright heard from Brian Fogarty this week. He indicated that he had a certified package from you at the post office (and so you appear to have his correct address). Unfortunately, he just had back surgery and is unable to pick up the package. (The post office refused to let his wife sign for it.)

To the extent you are seeking to take his deposition, he indicated that he is bed ridden and on strong opioids for the next few weeks.

Please also know that you have only two remaining depositions before you exceed the ten deposition limit. We owe you a response on David McKeown's availability and will be in touch later this week with that information.



11/9/25, 5:19 PM

**EXHIBIT I**

Gmail - Former Employees



**T. Chase Samples**  
Attorney at Law

**Jackson Lewis P.C.**  
15 South Main Street  
Suite 700  
Greenville, SC 29601  
Direct: (864) 672-8034 | Main: (864) 232-7000  
[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

[Quoted text hidden]

---

**Debra Nelson** <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com)>  
Cc: "Valenza, Joseph V. (Greenville)" <[Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com)>

Wed, Oct 29, 2025 at 11:23 AM

I will require a doctors note from Brian stating this. Otherwise I will reschedule him for 11/2/25 and I will expect him to be there

[Quoted text hidden]

---

**Samples, T. Chase (Greenville)** <[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com)>  
To: Debra Nelson <[REDACTED]>  
Cc: "Valenza, Joseph V. (Greenville)" <[Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com)>

Fri, Oct 31, 2025 at 11:28 AM

Ms. Nelson:

David Mckeough is available next Monday or Tuesday for his deposition, anytime prior to 3:00 p.m. I suggest we do it via Teams to save time and costs for all parties. Please let us know which day and time works best for you.

David's deposition will be the ninth deposition you have taken, leaving you only one more.

Regarding your email below, related to Brian Fogarty, since he is a former employee, we do not have control over Mr. Fogarty, and so you'll have to subpoena his attendance. But, as we've indicated, he advised Curtiss Wright that he recently had back surgery and is unavailable in the short term to appear for his deposition.

[Quoted text hidden]

---

**Debra Nelson** <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <[chase.samples@jacksonlewis.com](mailto:chase.samples@jacksonlewis.com)>, "Valenza, Joseph V. (Greenville)" <[joseph.valenza@jacksonlewis.com](mailto:joseph.valenza@jacksonlewis.com)>

Fri, Oct 31, 2025 at 12:32 PM

My 2 witnesses until I get approval from the court will be Jeff Womack and Antonio Coleman

[Quoted text hidden]

---

**Samples, T. Chase (Greenville)** <[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com)>  
To: Debra Nelson <[REDACTED]>  
Cc: "Valenza, Joseph V. (Greenville)" <[Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com)>

Fri, Oct 31, 2025 at 2:49 PM

Thank you, Ms. Nelson. What day(s) are you looking at for the Antonio Coleman deposition next week? He is outside of our control and so you'll have to subpoena him, if you haven't already.

11/9/25, 5:19 PM

**EXHIBIT I**

Gmail - Former Employees

We'll report back on Jeff Womack's return to work status once we know more next week.

**T. Chase Samples**

Attorney at Law

**Jackson Lewis P.C.**

15 South Main Street

Suite 700

Greenville, SC 29601

Direct: (864) 672-8034 | Main: (864) 232-7000

[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

**From:** Debra Nelson <[REDACTED]>  
**Sent:** Friday, October 31, 2025 12:32 PM  
**To:** Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com>; Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>  
**Subject:** Re: Former Employees

[Quoted text hidden]

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**Debra Nelson** <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Fri, Oct 31, 2025 at 3:14 PM

You should already know Jeff's status. I will let you know when I have a date confirmed.

[Quoted text hidden]

---

**Debra Nelson** <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sat, Nov 1, 2025 at 11:53 AM

At the moment until this case is reviewed I will only focus on Jeff Womack and Antonio Coleman.

I reviewed the discovery docs that you sent and it's a whole lot of nothing. The documents that I requested you have not produced. You are the professionals here so you know this is obstruction of justice. I will be filing something to preserve my rights and have it on the record until there is a new Judge assignment.

[Quoted text hidden]

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**Debra Nelson** <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Sun, Nov 2, 2025 at 6:44 AM

Attached is the Notice of Deposition scheduled for November 5, 2025 from 12-2 p.m.

[Quoted text hidden]

 **Signed Notice of Deposition 2025\_11\_5.pdf**  
756K

---

**Samples, T. Chase (Greenville)** <Chase.Samples@jacksonlewis.com>  
To: Debra Nelson <[REDACTED]>  
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 9:53 AM

Ms. Nelson:

11/9/25, 5:19 PM

**EXHIBIT I**

Gmail - Former Employees

Jeff Womack did not return to work yesterday or today, and he is advising the company that he has another doctor's appointment soon, and that his return to work date is uncertain.

We will plan to substitute in Dave McKeough. Can we plan to do his deposition through Zoom or Teams? Also, do you anticipate also deposing Antonio Coleman tomorrow?

Thanks.

[Quoted text hidden]

---

Debra Nelson <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>  
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Tue, Nov 4, 2025 at 1:47 PM

No I have it scheduled to be in person. I will be demanding a doctors note from Jeff because I believe defense is operating in bad faith.

[Quoted text hidden]

---

Debra Nelson <[REDACTED]>  
To: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>  
Cc: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 12:30 PM

Counsel,

In light of what was discussed in the deposition of David McKeough on November 5, 2025 starting at 12:00 p.m. I will need a copy of Patrick Ingram's certification test for Final Inspection (Inspection of Nuclear)

[Quoted text hidden]

11/9/25, 4:59 PM

EXHIBIT I-1

Gmail - Automatic reply: Former Employees



Debra Nelson &lt;nelsondebra62@gmail.com&gt;

**Automatic reply: Former Employees**

8 messages

**Valenza, Joseph V. (Greenville)** <Joseph.Valenza@jacksonlewis.com>  
To: Debra Nelson <[REDACTED]>

Wed, Oct 29, 2025 at 11:24 AM

I am out of the office in depositions through Thursday, October 30th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

**Samples, T. Chase (Greenville)** <Chase.Samples@jacksonlewis.com>  
To: Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 12:31 PM

I am out of the office traveling and in meetings on Wednesday and Thursday and so my response to your email may be delayed. If you need immediate assistance, then please contact my assistant, Paula Davis, paula.davis@jacksonlewis.com.

**Valenza, Joseph V. (Greenville)** <Joseph.Valenza@jacksonlewis.com>  
To: Debra Nelson <[REDACTED]>

Wed, Nov 5, 2025 at 12:31 PM

I am out of the office in depositions through Thursday, November 6th. If you need assistance prior to my return, please contact my assistant, Marie Wilson, Marie.wilson@jacksonlewis.com.

**Debra Nelson** <[REDACTED]>  
To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 1:54 PM

I will need Antonio Coleman's badge times for July 10-14, 2023  
[Quoted text hidden]

**Debra Nelson** <[REDACTED]>  
To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 1:58 PM

I will need Patrick Ingram's pay record for 2022-2023  
[Quoted text hidden]

**Debra Nelson** <[REDACTED]>  
To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Wed, Nov 5, 2025 at 10:48 PM

Since you have contacted Brian Fogarty and he has not participated in depositions he needs to return my witness fee ASAP. I expect it back within 7 days.  
[Quoted text hidden]

**Valenza, Joseph V. (Greenville)** <Joseph.Valenza@jacksonlewis.com>  
To: Debra Nelson <[REDACTED]>  
Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Thu, Nov 6, 2025 at 2:20 PM

Ms. Nelson,

We've let Brian Fogarty know that he is to mail the witness fee back to you. Other than telling him this, we will not be otherwise be involved in interactions with third parties that you have subpoenaed.

11/9/25, 4:59 PM

**EXHIBIT I-1**

Gmail - Automatic reply: Former Employees

[Quoted text hidden]

Debra Nelson <[REDACTED]>  
To: "Valenza, Joseph V. (Greenville)" <Joseph.Valenza@jacksonlewis.com>

Thu, Nov 6, 2025 at 3:11 PM

No problem I am sending him a demand letter today for refund of witness fees and mailing costs

[Quoted text hidden]

EXHIBIT J

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

Page 1

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical

Corp. d/b/a Curtiss-Wright Steam

and Air Solutions, Stephanie Lanier,

and Shane Sablotsky,

Defendants.

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DEPOSITION: Debra E. Nelson

DATE: October 28, 2025

TIME: 10:20 a.m. EST

LOCATION: Veritext Legal Solutions

28 Bridgeside Boulevard, Suite 205

Mount Pleasant, SC

TAKEN BY: Counsel for the Plaintiff

REPORTED BY: Rosemary F. Grogan, CSR, RPR



EXHIBIT J

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

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1 Q. You also claim in the letter to President  
2 Biden that your résumés and DD 214 were deleted from USA  
3 Jobs without your knowledge?

4 A. Yes. That's what I'm saying, like --

5 Q. Do you believe the government was responsible  
6 for that?

7 A. I personally didn't believe Curtiss-Wright had  
8 the ability to do all that, but -- you know what I'm  
9 saying? I don't know what they're capable of doing.  
10 All I know is I have a USA Jobs account that I don't  
11 check frequently. I've had this account for probably,  
12 what, 20 years now.

13 They don't delete anything. Nothing drops off  
14 of that website. Like if I put a résumé on there in  
15 2000, that résumé will stay on there until I delete it  
16 or update it. When I tried to access my account, my  
17 résumé was gone. My job searches were gone. Somebody  
18 had access to my account because I would never delete my  
19 résumé off of USA Jobs. And like -- and I just was  
20 like --

21 And so it's the constant invasion into my  
22 personal matters that just caused me a lot of distress.  
23 I'm like what the F is this? Really, are we in the  
24 United States or are we in Russia, because I'm confused?  
25 So like all my personal stuff was being invaded and I

EXHIBIT J

Debra E Nelson

October 28, 2025

Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

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1 felt like there's nobody here to protect me, because as  
2 far as I know, it's Curtiss-Wright and the government or  
3 one or the other.

4 So I'm like -- and then the people I'm turning  
5 to to help me, they're ignoring me. So yeah, that  
6 caused quite a bit of distress.

7 Q. You also state in your letter that the YouTube  
8 channel you created to chronicle your experience on your  
9 house-flipping journey was deleted.

10 You believe Curtiss-Wright was responsible for  
11 that?

12 A. I can't confirm or deny. Discovery is not  
13 complete.

14 Q. Do you believe the federal government was  
15 responsible for that?

16 A. I can't confirm or deny. Discovery is not  
17 complete, but yes, my YouTube was deleted and then all  
18 of a sudden it reappears.

19 Q. Did you accuse the federal government of  
20 illegally surveilling you on your electronic devices  
21 such as phones, printers, and your car being hacked?

22 A. To be honest with you, stuff like that I would  
23 automatically think that it's some kind of governmental  
24 secret, you know, law enforcement because you wouldn't  
25 think a corporation that builds parts is doing stuff

Debra E Nelson October 28, 2025  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

Page 230

1 like that, but I don't know. There's a whole world of  
2 stuff that's going on that I have no knowledge of.

3 So I don't know who's doing it, but I'm trying  
4 my best to find out.

5 Q. Bear with me one second.

6 How much money are you looking for to get out  
7 of this case, Ms. Nelson?

8 A. A lot. Considering everything that I've gone  
9 through in the last two years, I'm looking to be well  
10 compensated and it's mostly due to the stress and the  
11 constant worry of who's listening to me, who's following  
12 me. All my thoughts of having any privacy has been  
13 robbed. I don't have any confidence that any time I get  
14 on the phone I'm not being listened to.

15 And the same thing with the emails. They  
16 ain't blocking it anymore, but I don't have any  
17 confidence that anything I do is private. And then the  
18 attempts to try to set me up with these random guys  
19 messaging me. Come on now, it's not going to happen.  
20 So my whole life has changed because of this?

21 Q. But how much money are you looking for?

22 A. I'm still debating, but it's going to be a  
23 lot.

24 Q. And most of that comes from, you said, the  
25 stress you've experienced. Is that like emotional

EXHIBIT J

Debra E Nelson  
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

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1 distress type damages?

2 A. Oh, definitely, emotional distress.

3 Q. You were only out of work for about four  
4 months; is that right?

5 A. Yes.

6 Q. So your lost wages are basically limited to  
7 that four-month period of time between November 21st,  
8 2023, and then March of 2024, when you started this new  
9 job?

10 A. Correct.

11 Q. Then the new job you're actually making more  
12 money than you were making at Curtiss-Wright,  
13 significantly more?

14 A. Oh, yeah, because they know my certification.

15 Q. Other than the therapist you mentioned  
16 earlier -- remind me of her name, Sue?

17 A. Sue Shealy.

18 Q. Have you treated with any medical providers in  
19 connection with the claims in this case?

20 A. No. I don't like to -- I don't want to be put  
21 on any medication or anything, but I -- I talk to Sue  
22 Shealy when I need to.

23 Q. How much do you pay Ms. Shealy for her  
24 services?

25 A. Whatever she charges me for the visit.

**EXHIBIT K**

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 1 of 3

**UNITED STATES DISTRICT COURT FOR THE  
DISTRICT OF SOUTH CAROLINA  
CHARLETON DIVISION**

**Debra Nelson,**

**Plaintiff,**

**Case No. 2:25-cv-00405-RMG-MGB**

**v.**

**NON-PARTY APPLE INC.'S MOTION  
FOR EXTENSION OF TIME**

**Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, Stephanie Lanier, and Shane  
Sablotsky,**

**Defendants.**

Third-Party Apple Inc. ("Apple"), by and through undersigned counsel, respectfully requests a ten (10) day extension of the deadline set to file its Response to Plaintiffs Objections (ECF No. 219) filed on November 14, 2025.

The Text Order dated November 24, 2025, states Defendants may file responses to the objections within 14 days after Plaintiffs Objections were entered on the docket. Though the Objections were filed November 14, 2025, they were entered on the docket on November 17, 2025. Therefore, the current deadline is December 1, 2025. Non-Party Apple, Inc. asks the Court to extend the deadline to December 8, 2025, to respond to Plaintiffs' Objections. Granting this extension would not affect other deadlines in this litigation and would not prejudice any party.

Apple makes this Motion based on attorney and client availability during the Thanksgiving holiday week. In particular, Apple is under a company-wide shut down until December 1, 2025, the date of the current deadline.

For the reasons set forth herein, Apple respectfully requests that the deadline to respond to Plaintiff's Objections (ECF No. 219) be extended by seven (7) days, resulting in a new

**EXHIBIT K**

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 2 of 3

deadline of December 8, 2025.

Respectfully submitted,

s/ Robert Wehrman  
Brian C. Duffy (Fed ID No. 9491)  
Robert Wehrman (Fed ID No. 13426)  
Duffy & Young LLC  
96 Broad Street  
Charleston, SC 29401  
T: (843) 720-2044  
bduffy@duffyandyoung.com  
rwehrman@duffyandyoung.com

Nury Siekkinen (pro hac vice)  
ZWILLGEN PLLC  
1900 M Street, NW, Suite 250  
Washington, DC 20036  
Telephone: (202) 296-3585  
nury@zwillgen.com

*Attorneys for Non-Party  
Apple Inc.*

November 25, 2025  
Charleston, South Carolina

**EXHIBIT K**

2:25-cv-00405-RMG-MGB

Date Filed 11/25/25

Entry Number 226

Page 3 of 3

**CERTIFICATE OF SERVICE**

I hereby certify that a copy of **Non-Party Apple Inc.'s Motion for Extension of Time** was served upon Plaintiff by United States mail at the address below.

Debra Nelson

*Plaintiff*

Dated: November 25, 2025.

*/s/ Robert Wehrman*  
DUFFY & YOUNG, LLC